

The complaint

Mrs S is unhappy that QIC Europe Ltd (QIC) declined her claim for storm damage.

What happened

Mrs S had buildings and contents home insurance with QIC. She reported that the roof of her house and outbuilding had been damaged in a storm, leading to water ingress. QIC carried out an inspection and accepted the contents claim for water damage, but it declined the buildings claim. The surveyor reported that the outbuilding roof damage was due to wear and tear and there was no visible damage to the house roof.

Mrs S complained to QIC. She said the surveyor had looked at the wrong roof and she didn't agree that the outbuilding roof damage was wear and tear.

QIC looked into her complaint but, because the photographs didn't show any roof damage, it repeated its decision to decline the claim.

Our investigator upheld Mrs S's complaint. He agreed that the surveyor had looked at the wrong roof and he didn't think QIC had provided enough evidence of wear and tear rather than storm damage.

QIC didn't agree. After looking at further photographs provided by Mrs S, it accepted that there was damage to the house roof. But it maintained its view that the damage was due to wear and tear.

The complaint was passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

I've decided to uphold Mrs S's complaint for broadly the same reasons as our investigator. I'll explain.

QIC doesn't dispute that there was a storm – it was a well-publicised, named storm. So, I've looked at Mrs S's policy to determine the cover provided for storm damage. It states:

“Storm

We will cover loss or damage caused by storm winds of Force 10 or above.”

However, QIC relied upon its expert surveyor's report and an exclusion clause to decline her claim:

“We don't cover:

- anything that happens gradually.*

General Exclusions

- Any gradual or maintenance-related loss or damage
- Loss or damage as a result of wear and tear”

The surveyor reported:

“The external damage is firstly to the main roof at the front. The insured states this has been damaged but we viewed the full roof and no damage was seen. All the slates are in place and nothing has been moved or lifted. The other two sides of the roof were inspected and no damage found. The brickwork to the front elevation is in poor condition and the pointing is in a very poor state. This could be allowing water in. The outbuilding in the back garden has slates that have slipped on the roof. This [is] due to age and not an insured event. Some of the roof has been renewed recently but this section is older.”

For me to decide whether it was fair for QIC to decline Mrs S’s claim, I must consider whether the damage is consistent with that typically caused by a storm and, if so, whether it’s likely that the storm was the main cause of the damage.

The first point to consider is QIC’s report that there wasn’t any damage to the main roof. Mrs S provided photos of her roof which clearly show damage. QIC has since seen those photos and agrees that there is evidence of damage to the main tiled roof as well as the outbuilding roof. It’s not clear why the surveyor reported that there was no damage, despite having viewed the full main roof, but I’m satisfied that there is evidence of broken and lifted tiles. The house and outbuilding are in an exposed location and the significant wind speeds around that time could’ve lifted roof tiles. I think it’s possible that a storm could’ve caused that type of damage.

As I’m satisfied that the damage is consistent with that typically caused by a storm, I’ve thought about whether it is likely to have been the main cause of the damage.

QIC’s surveyor said that the damage to the outbuilding roof was largely caused by wear and tear and it was in a generally poor state of repair. On reconsidering the main roof, after seeing Mrs S’s photos, QIC still felt that the damage happened gradually and declined the claim.

As mentioned above, the surveyor reported, *“The outbuilding in the back garden has slates that have slipped on the roof. This [is] due to age and not an insured event. Some of the roof has been renewed recently but this section is older”*. Having looked at the photos I agree with this statement. But the section of roof the surveyor referred to as damaged due to being older is not Mrs S’s roof – it’s that of her neighbour. Mrs S’s roof is the recently renewed one and there is a marked difference between the condition of her roof and the older roof of her neighbour’s property. This Mrs S’s claim that she had maintained her roof, so I’m inclined to place more weight on Mrs S’s evidence than on that provided by QIC’s surveyor. On balance, I think it’s more likely than not that the damage was caused mainly by the storm rather than wear and tear.

After reviewing Mrs S’s photos, QIC agreed that her roof was damaged but said that nail fatigue was more likely the main cause of damage. I’ve thought carefully about its description of nail fatigue (slipped tiles) and I can see why it thinks that could be a cause of the damage. QIC also said storm damage would cause tiles to be removed or broken. But Mrs S reported broken pieces of tile in her loft space, coming through the felt where a branch had pierced it, and the photos show broken tiles as well as some slipped tiles. Given that the photos also show areas of the roof where tiles have been newly replaced, it’s clear that Mrs

S maintained her roof. So, I think it's more likely that the storm was the *main* cause of the damage.

Overall, I don't think QIC has provided enough evidence to show that a policy exclusion clause applies. There is clear evidence of damage, the main cause of which is likely to have been the storm. For that reason, I think QIC should settle the external damage claim in line with the remaining policy terms and conditions.

My final decision

For the reasons given above, my final decision is that QIC Europe Ltd must:

- settle Mrs S's claim for storm damage to the roof of her house and outbuilding in line with the remaining policy terms and conditions.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs S to accept or reject my decision before 14 December 2020.

Debra Vaughan
Ombudsman